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Pursuant to article 88 item 2 of the Constitution of the Republic of Montenegro I pronounce

EDICT
ON PROMULGATING LAW ON CHANGES AND AMENDMENTS OF LAW
ON PRIMARY EDUCATION

I promulgate the Law on Changes and Amendments of Law on Primary Education, adopted by the Constitutional Assembly of the Republic of Montenegro, at the sixth meeting of the first regular session in 2007, on 25th July 2007.

Number: 01-967/2
Podgorica, 2nd August 2007

President of the Republic of Montenegro,

Filip Vujanović

LAW
ON CHANGES AND AMENDMENTS OF LAW ON PRIMARY EDUCATION

Article 1

In Law on Primary Education (»Official Journal of the RM«, number 64/02), in article 4, paragraph 1 after word »educaion« the words »according to publicly valid educational curriculum« shall be added.

Article 2

In article 8 words: »art primary education« shall be replaced by words: »primary art education«.

Article 3

In article 11 after the indented line 5 a new indented line 6 shall be added; it reads:

» - »official language« is the language which is in official use in the Republic;«

In indented line 12 afer word »school« words: »according to publicly valid educational curriculum« shall be added.

Former indented lines 6, 7, 8, 9, 10, 11, 12, 13 and 14 shall become indented lines 7, 8, 9, 10, 11, 12, 13, 14 and 15.

Article 4

In article 12 paragraph 1 after word »basis« words: »publicly valid« shall be added.

After paragraph 2 a new paragraph 3 shall be added; it reads:

»The manner of application and implementation of educational curricula shall be regulated by a regulation of the Ministry«.

Article 5

In article 12 paragraph 1 words: »educational plan and program« shall be replaced by words: »educational curriculum«.

In paragraph 3 words: »Bureau for Educational Services« shall be replaced by words: »Council for General Education«.

In paragraph 4 words: »and the local community« shall be removed.

Article 6

In article 23 after paragraph 2 a new paragraph 3 shall be added; it reads:

»Class with the instruction in the language and letter of a minority may have smaller number of pupils which may not be less than 50% of the number of pupils set forth by regulation of the Ministry«.

In paragraph 3 words: »at the proposal of school« shall be removed.

Article 7

In article 25 paragraph 2 after words »class« the words: »as a rule« shall be added.

In article 4 words: »starting from the first grade or from the sixth grade as a second language« shall be removed.

Article 8

In article 26 paragraph 2 words: »the Serbian Language« shall be substituted by words: »official language«.

Article 9

After article 26 subtitle: »Schools for Teacher Training Practice« and article 27 shall be removed.

Article 10

After article 27 subtitle: »Contract« and article 28 shall be removed.

Article 11

In article 33 paragraph 2 shall change and read: »For enrollment of children in school the authority set forth by the statute of school shall appoint the commission«.

Article 12

In article 34 after word »proposal« words: »respectively with the consent« shall be added.

Article 13

In article 48 paragraph 2 after word »subject« comma shall be inserted instead of fullstop and the following words shall be added: »except of pupil of the first grade during the first classification period«.

Article 14

In article 49 paragraph 1 after word »period« comma shall be inserted instead of fullstop and the following words shall be added: »except for pupils of the first grade at the end of the first classification period«.

Article 15

In article 50 after paragraph 2 a new paragraph 3 shall be added; it reads:

»The manner of calculating the average of positive marks shall be regulated closer by regulation of the Ministry«.

Article 16

In article 55 paragraph 2 and article 56 paragraph 2 words: »competent Bureau for Educational Services« shall be replaced by words: »Examining Center«.

Article 17

In article 72 paragraph 3 words: »the competent Council« shall be substituted by word »the Ministry«.

Article 18

In article 75 after paragraph 1 a new paragraph 2 shall be added; it reads:

»The manner of implementing the rights and obligations of educator in elementary school shall be regulated by the agreement between the school and the preschool institution«.

Former paragraphs 2 and 3 shall become paragraphs 3 and 4.

Article 19

In article 76 paragraph 6 shall change and read:

»The teaching process in the fifth grade shall be delivered by grade-teaching instructor, or teacher who has completed twoyears post-secondary school or the Faculty for Teacher Training, except for the instruction of foreign

language, engineering and informatics, and one of the subjects: physical education, fine art and musical culture, which shall be executed by the subject-teaching lecturer«.

Paragraph 7 shall change and read:

»The teaching process in the sixth grade shall be organized as the subject teaching. The teaching process shall be delivered by the subject-teaching lecturer who has completed the Faculty for Teacher Training or Art Academy«.

After paragraph 7 a new paragraph 8 shall be added; it reads:

»Exceptionally to paragraphs 5 and 6 of this article, teaching process in the fourth and fifth grade may be delivered by grade-teaching instructor, or teacher who has completed two years post-secondary education or Faculty for Teacher Training, if no subject-teaching lecturers have applied on the advertisement«.

Article 20

In article 77 paragraph 3 words: »Serbian Language« shall be replaced by words: »official language«.

Article 21

In article 79 paragraph 1 indented line 1 words: »Serbian, or« shall be removed.

After paragraph 1 a new paragraph shall be added; it reads:

»Grade-teaching instructors shall, within forty-hours working week, deliver 20 to 22 lessons of immediate work with pupils in line with general part of the educational curriculum, and the distribution of the remaining working time, within the forty-hours working week, shall be established by the statute of school«.

In paragraph 2 words: »30 lessons« shall be replaced by words: »not less than 20 lessons«.

Former paragraphs 2 and 3 shall become paragraphs 3 and 4.

Article 22

Article 80 shall change and read:

»Educators shall, within forty-hours working week, deliver 26 lessons of immediate work with pupils, and the distribution of the remaining working time shall be established by the statute of school, or preschool institution, in line with the agreement between the school and the preschool institution«.

Article 23

In article 84 after paragraph 2 a new paragraph 3 shall be added; it reads:

»The teachers who found themselves in school in a permanent labor relation on the day of coming of this law into force, and who do not have the educational profile set forth in article 76 of this law, shall continue working«.

Article 24

Board for Constitutional Issues and Legislation of the Parliament of Montenegro is authorized to establish a refined text of this law.

Article 25

This law comes into force on the eighth day of as of the day of its publishing in the »Official Journal of the Republic of Montenegro«.

SU-SK Number 01-353/13
Podgorica, 25 July 2007

Constitutional Assembly of the Republic of Montenegro

President

Ranko Krivokapić